IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No.204
CP CA CAA-68/ND/2025

IN THE MATTER OF:
FS INDIA DEVCO PRIVATE LIMITED ... Applicant/Petitioner

Under Section: 230-232 of Companies Act, 2013

Order delivered on 04.11.2025

CORAM:
SH. ASHOK KUMAR BHARDWAJ **MS. REENA SINHA PURI**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:

For the Applicant : Adv. Divyam Agarwal, Adv. Ankit Aggarwal, Adv. Kavya Jha

For Income Tax Dept. : Adv. Indruj Singh Rai SSC, Adv. Rahul Singh and Adv. Sanjeev Menon JSC's, Adv. Sumita Singh, Adv. Nishant Shokeen and Adv. Yash Bharadwaj

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

There is no appearance on behalf of the Regional Director (MCA) and Official Liquidator. Mr. Rahul Singh, Ld. Counsel for Income Tax Department submitted that ex-facie the Income Tax Department has no objection to the scheme, but it need to file detailed report in respect of all the Applicants.

Issue fresh notice to Regional Director and Official Liquidator returnable on 09.12.2025. The Applicant undertakes to serve notice upon the Regional Director and Official Liquidator through all modes viz. registered post, speed post, courier service and E-mail. Affidavit of service be filed within one week. Reply, if any, may be filed by the Regional Director and Official Liquidator within one week from the date of receipt of the notice. Rejoinder, if any, may be filed before the next date of hearing.

Let detailed report in respect of all the Applicants be filed within two weeks from today. List on **09.12.2025**.

Sd/-
(REENA SINHA PURI)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

Iqraa/Anant